

4. 26CV01624 Beaumont, Amanda et al v. Winco Foods

EVENT: Defendant Winco Foods LLC's Demurrer to the Sixth Cause of Action of the Second Amended Complaint; Motion to Strike Punitive Damages Allegations

The demurrer to the sixth cause of action for negligent hiring is OVERRULED.

An essential element of the cause of action is that defendant knew or should have known the subject employees were unfit and that the unfitness created a particular risk to others. (See CACI 426)

The allegation in paragraph 69 that defendant "retained personnel notwithstanding actual or constructive knowledge of their unfitness" is conclusory to a degree.

Less specificity is required when 'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,' [citation]; '[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party'

Miles v. Deutsche Bank National Trust Co. (2015) 236 Cal.App.4th 394, 403

Here, Winco possess full information as to whether there was reason to believe the subject employees were unfit prior to the incident. Thus, based on the foregoing pleading rule, Plaintiffs' semi-conclusory allegations are sufficient.

The motion to strike punitive damages is DENIED.

The SAC sufficiently alleges ratification as prescribed by Civil Code 3294(b). Pleading a failure to discipline or terminate the subject employees sufficiently alleges ratification. (See *Hart v. Nat'l Mortgage & Land Co.* (1987) 189 Cal.App.3d 1420, 1432-1433) The SAC alleges in paragraph 34 that " ... to date Defendants have not disciplined, retrained or taken corrective action against any loss prevention personnel involved in the incident ..."

Winco seems to suggest the pleading must identify by name the managing agent or other individual prescribed in 3294(b) who ratified the conduct. While the pleading does not identify a name or names, paragraph 34 does identify categories of individuals including officers, directors, managing agents of Winco.

While it could be argued these allegations are conclusory because they restate the language of 3294(b), Winco has not cited any authority (nor is the Court aware of any) that names of individuals who qualify as managing agents must be alleged at the pleading stage.

Plaintiff shall prepare and submit the form of order within two weeks. Defendant shall file an answer within 20 days.

5. 25CV03619 Wells Fargo Bank, N A v. Guzman, Robert J

EVENT: Plaintiff's Motion for Summary Judgment

Plaintiff's Motion for Summary Judgment is GRANTED. The Court will sign the proposed order and judgment. The Case Management Conference scheduled for October 7, 2026 is vacated.

6. 26CV01665 Perondi, Christopher v. Bingaman, Renee

EVENT: Defendant Renee Bingaman's Motion for Sanctions Against Plaintiff and Plaintiff's Counsel Pursuant to CCP 128.7

Defendant Renee Bingaman's Motion for Sanctions Against Plaintiff and Plaintiff's Counsel Pursuant to CCP 128.7 is DENIED WITHOUT PREJUDICE. In light of the September 9 ruling on the motion for summary judgment, the motion is premature.

Additionally, the Court notes that per CCP 128.7, the actual motion must be served on Plaintiff's counsel in order to start the 21 day safe harbor period. CCP 128.7 motions require strict procedural compliance. (See *CPF Vaseo Associates, LLC v. Gray* (2018) 29 Cal.App.5th 997, 1007)

7. 26CV02311 In re: Sprinkle, Dakota James

EVENT: Change of name (adult)

The Court is in receipt of the proof of publication and will sign the decree provided.